

IN THE UNITED STATES BANKRUPTCY COURT
FOR THE SOUTHERN DISTRICT OF ALABAMA

IN RE:

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Case No. _____

Debtors.

MOTION FOR DISCHARGE IN CHAPTER 13 CASE
(ONE DEBTOR DECEASED OR INCAPACITATED IN A JOINT CASE)

Debtor _____ moves for a discharge on behalf of both
debtors and certifies as follows:

Part I. Certification Regarding Domestic Support Obligations (check only one)

Pursuant to 11 U.S.C. § 1328(a), I certify that:

- ☐ Neither my deceased/incapacitated co-debtor nor I owed any domestic support obligation when we filed our bankruptcy petition, and neither of us have been required to pay any such obligation since then.
- ☐ Either my deceased/incapacitated co-debtor or I am or have been required to pay a domestic support obligation. We have paid all such amounts that our chapter 13 plan required us to pay. We have also paid all such amounts that became due between the filing of our bankruptcy petition and today.

If you checked the second box and a debtor is currently required to pay a domestic support obligation, you must provide the information below:

Debtor's current address: _____

Debtor's current employer and the employer's address: _____

Part II. Certification Regarding Section 522(q) (check only one)

Pursuant to 11 U.S.C. § 1328(h), I certify that:

- ☐ My co-debtor and I have not claimed an exemption pursuant to § 522(b)(3) and state or local law (1) in property that either of us or a dependent of either uses as a residence, claims as a homestead, or acquired as a burial plot, as specified in § 522(p)(1), and (2) that exceeds \$214,000* in value in the aggregate.
- ☐ My co-debtor and I have claimed an exemption in property pursuant to § 522(b)(3) and state or local law (1) that either of us or a dependent of either uses as a residence, claims as a homestead, or acquired as a burial plot, as specified in § 522(p)(1), and (2) that exceeds \$214,000* in value in the aggregate.

**Amounts are subject to adjustment on 4/1/2028 and every 3 years thereafter with respect to cases commenced on or after the date of adjustment.*

Part III. Financial management course

The debtors have each filed a certificate of financial management or, if not, one debtor has filed a certificate of financial management and the debtors' attorney has filed a motion for exemption from financial management course for the deceased or incapacitated debtor.

Part IV. Co-debtor's circumstances (check one)

- ☐ The co-debtor is deceased. Date of death: _____
- ☐ The co-debtor is incapacitated and cannot certify to the facts alleged in this motion.

Describe the co-debtor's incapacity: _____

Part V. Signature of Debtor

I declare under penalty under the laws of the United States of America that the foregoing is true and correct.

Executed on _____
Date Debtor